



File No.: EXP202315326

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 20/09/2023. The complaint is directed against INTERESTELAR SEVILLA A.I.E. with NIF V40651846 (hereinafter, the respondent). The reasons for the complaint are as follows: the complainant points out that the respondent requires that, once the passes for the next edition of the Interestelar festival are purchased, buyers must personalize them with the data and a photo of each attendee as a mandatory condition to be able to download them; each buyer has a period of 20 days to do this for free, after which there will be a cost of €20; in the Privacy Policy of the respondent, it is stated, "For the purchase of tickets, the legitimizing basis that allows the processing of your data will be the execution of a contract in which you are a party (Art. 6.1.b of the GDPR) and your consent (Art. 6.1.a of the GDPR) to request your image in order to expedite access to the festival and allow security personnel to identify you as the holder of the pass quickly." Nevertheless, if the image is not sent, the pass cannot be formalized; the Privacy Policy also does not clarify the purpose of this processing.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 31/10/2023, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 11/11/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on 13/11/2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

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On 12/12/2023, the respondent provided a response to the request from the AEPD stating:

- That the entry verification process was updated for all festivals organized by the promoter, as follows:

- (i) The user purchases the ticket, during which their identifying personal data as the ticket buyer is collected.
- (ii) A confirmation email is received, indicating the need to verify the data of the attendees for the personalization of their ticket and the "cashless" wristbands that are delivered to the attendees' homes. In this process, a photo of the attendees and their identifying data (name, surname, email, and NIF) is requested. The aforementioned photo would be destroyed once the festival is over.
- (iii) The "cashless" wristbands are delivered to the attendee's home.
- (iv) The security personnel controlling access to the festival verify the identity of the attendee using the identifying photo provided by the attendee, aiming for a smooth access to the festival and avoiding crowds that could jeopardize the safety of the attendees and the facilities.

This information was repeatedly incorporated at different points on the website.

- Regarding "the request for a photograph for the identification of event attendees, it was decided to request this image solely with the aim of attempting to benefit the attendees of the event, in that it could expedite the access process to the festival and avoid crowds that could put the interested parties or the facilities at risk.

The data processing related to the image originated as a security measure based on the legitimate interest of the data controller and, in particular, of the interested party themselves, with the already indicated purpose of protecting the safety of the attendees and informing them of this in the respective informative clauses on the websites of the different festivals organized by the promoter (...)

However, in subsequent analyses and studies of the issue, accompanied by expert advisors in privacy and data protection, it was deemed that this measure could be excessive concerning the principle of minimization of Article 5.1.c of the GDPR, even though such images were to be deleted at the end of the festival and were only used for proper verification by the security personnel (...)"

Regarding the actions prior to the complaint that were carried out, it states:

"(...)

... However, in this case, due to an error in the application of the procedure, the treatment was not properly studied in due time, resulting in a late application of the verification process and therefore the subsequent withdrawal and deletion of the images once requested from the attendees.

Thus, and consequently, based on the subsequent analysis carried out by the data controller in October 2023, along with their privacy consultants, it was proactively decided not to carry out the data processing related to the images of the attendees for the verification process, as it was understood that this request was not adequately justified nor proportional concerning the pursued purpose.

Therefore, on 18 October 2023, the images provided by the attendees were deleted and removed, with prior notification of this decision to the interested parties who had already submitted their image. The communication was made

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progressively and through individual communication that we provide in this administrative file, along with the record of the communication sent to the claimant and its opening on the date of November 13, 2023, which we understand is of interest for this file.

"(...)"

THIRD: On December 20, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

## LEGAL GROUNDS

I

### Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 5, Principles relating to processing, of the GDPR establishes that:

"1. Personal data shall be:

"(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are

processed ('data minimization');  
(...)"

Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c), it refers to the principle of data minimization, indicating that the data must be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they may only be collected when they are going to be processed and that they may only be used for the purpose for which they were collected, but not for any other objective.

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Article 5.1.c) enshrines the principle of data minimization and implies that the processing of personal data must be adjusted and proportionate to the purpose it is directed at, clearly determining the purposes for which the data is collected and processed, and the processing of excessive data must be restricted or the data must be deleted.

Moreover, the relevance in the processing of data must occur both in the collection phase and in the subsequent processing that is carried out.

It should be noted that the GDPR limits the use or processing of data by necessity and not by excess; that is, personal data must be adequate, necessary, relevant, and limited to the need for which they were collected.

Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registration actions; and which amends Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, introduces modifications to the LOPDGDD, both in the processing of certain procedures of the Spanish Agency for Data Protection (AEPD) and in its Statute.

Among the new features introduced is a new paragraph 6 added to Article 65 of the LOPDGDD which establishes that, even if a claim is admitted for processing, the data controller or processor demonstrates having adopted measures for compliance with applicable regulations, the Spanish Agency for Data Protection may also resolve to archive the claim when the circumstances allow for alternatives to corrective action, provided that no prior investigative actions or any of the procedures regulated by law have been initiated.

Article 65 of the LOPDGDD, Admission of Claims for Processing, establishes that:

"1. When a claim is presented to the Spanish Agency for Data Protection, it must evaluate its admissibility for processing, in accordance with the provisions of this article.

2. The Spanish Agency for Data Protection shall inadmit claims presented when they do not concern issues of personal data protection, are manifestly unfounded, are abusive, or do not provide reasonable indications of the existence of an infringement.

3. Likewise, the Spanish Agency for Data Protection may inadmit the claim when the data controller or processor, after a warning issued by the Spanish Agency for Data Protection, has adopted the

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corrective measures aimed at putting an end to the possible breach of data protection legislation and any of the following circumstances occur:

a) That no harm has been caused to the affected party in the case of the infringements provided for in Article 74 of this organic law.

b) That the rights of the affected party are fully guaranteed through the application of the measures.

4. Before deciding on the admission of the complaint for processing, the Spanish Agency for Data Protection may refer it to the data protection officer designated by the data controller or processor, if applicable, to the supervisory body established for the application of codes of conduct, or to the body that assumes the functions of extrajudicial conflict resolution for the purposes provided for in Articles 37 and 38.2 of this organic law.

The Spanish Agency for Data Protection may also refer the complaint to the data controller or processor when no data protection officer has been designated or when they are not adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the complaint within one month.

If as a result of such referral actions, the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may declare the complaint inadmissible.

5. The decision on the admission or inadmissibility for processing, as well as the decision that determines, if applicable, the referral of the complaint to the main supervisory authority deemed competent, must be notified to the complainant within three months. If this notification does not occur within this period, it will be understood that the processing of the complaint continues in accordance with the provisions of this title from the date on which three months have elapsed since the complaint was received by the Spanish Agency for Data Protection, without prejudice to the Agency's power to subsequently and expressly archive the complaint.

In the event that the Spanish Agency for Data Protection acts as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.4 of this organic law, the calculation of the period indicated in the previous paragraph will begin once all the necessary documentation for its processing has been received by the Agency.

When the facts of a complaint regarding the possible existence within the jurisdiction of the Agency are substantially identical to those subject to previous investigative actions or an already initiated sanctioning procedure, the notification of the decision on admission for processing may indicate the file number corresponding to the previous actions or the corresponding procedure, as well as the web address where the resolution that concludes the same will be published, so that the complainant can know the course and outcome of the investigation.

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6. After the admission for processing, if the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate solutions or alternatives to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated.

In the present case, the processing carried out using images for the identification of attendees at events, the same party being complained about stated that initially it was considered that this measure could help resolve the security problem of the attendees, but that "analysis and studies of the issue, accompanied by expert advisors in privacy and data protection, concluded that this measure could be excessive in terms of the principle of minimization of art. 5.1.c of the GDPR, even though such images would be deleted at the end of the festival and would only be used for proper verification by security personnel."

However, after subsequent analyses and studies, the data controller has demonstrated that they have adopted measures that allow compliance with data protection regulations, and states "...in October 2023, together with their privacy consultants, it was proactively decided not to carry out the processing activity related to the images of the attendees for the verification process, as it was understood that this request was not adequately justified nor proportional in terms of the pursued purpose. Therefore, on October 18, 2023, the images provided by the attendees were deleted and removed, previously

informing the interested parties who had already provided their image about this decision. The communication was made progressively and through individual communication, which we provide in this administrative file, along with the record of the communication sent to the complainant and its opening on November 13, 2023, which we understand is of interest for this file."

Consequently, and in accordance with the previous evidence, the present file must be concluded with its archiving due to the occurrence of a violation of data protection regulations, specifically the infringement of article 5.1.c) of the GDPR.

III

### Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

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Thus, as it has not been possible to attribute responsibility for the processing in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to INTERESTELAR SEVILLA A.I.E. and to the complainant.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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